



Haverhill

Economic Development and Planning
Zoning Board of Appeals
Phone: 978-374-2330

NOTICE OF DECISION

You are hereby notified of the decision of the Zoning Board of Appeals on the application of:

Permit Number: BOA-26-9

Applicant: Essex County Habitat for Humanity

Owner: Essex County Habitat for Humanity

Site Location: 512 Washington St, Haverhill, MA 01832

Assessors' Map Block Lot: 504, 245, 3

Relief Requested: Owner proposes to renovate the existing house on the property and divide it into 3 affordable housing units. The garage on the property will be torn down. Owner then proposes building a duplex on either side of the existing house adding an additional 4 affordable housing units to the property. Once complete, the entire property consisting of 7 units will be converted to condominiums that will have provisions within the condominium documents stating that each of the 7 units shall perpetually be defined as affordable housing. Each Unit will then be sold to qualified low-income home buyers.

Application Filing Date: April 15th, 2026

Public Hearing Date: May 20th, 2026

Deed of the property recorded: Book: 43285

Page: 146

Board's Decision by vote to GRANT/DENY said application:

Board Members Present: Chairman George Moriarty, Member Lynda Brown, Members Ted Vathally, Member Michael Soraghan and Member Louise Bevilacqua.

Board Members Votes: Member Bevilacqua: Yes. Member Brown: Yes. Member Vathally: Yes (meets the criteria for variance 255-10.2.2 paragraph 2). Member Soraghan: Yes. Chairman Moriarty: Yes.

Facts Presented:

The applicant seeks to construct multifamily dwellings on the property and will seek a special permit from City Council. Borders RU zone, located in the RH zoning district. Owned by Essex County Habitat for Humanity. This property has been vacant for quite some time after being foreclosed on; a philanthropist who purchased the lot is doing a service for our community with this. It was stated the project aligns with vision 2035. Variances are for lot area (22,670 sf where 68,000 sf is required, side yard setback (10 ft 1 in. and 9 ft 5 in. where 20 ft is required), separation of building (19 ft 4 in. and 23 ft 0.5 in. where 50 ft is required) from Note 13 of Ch. 255 Attachment 2 Appendix B, separation of building (19 ft 4 in. and 23 ft 0.5 in. where 40 ft is required) from Ch. 255 Section 8.2.2(2) and lot depth of 120 ft when 200 ft is required.

The existing house will remain where it is and renovate it to become three affordable housing units. (Seven units: three in the existing, two in each duplex. There will be four garage spaces; the total parking spaces for the entire building is 13). The garage and shed located on either side of the current building will be removed to construct duplexes on either side with garages built underneath for parking. This will become a seven-unit condominium; resulting in seven affordable housing units in perpetuity, all of which will be regulated (land included). Restrictions will be posted in both the deeds and master deed to maintain the affordable nature of the property. This will be one lot, remain under common ownership as a condominium. The Board received many letters of support from neighbors and have only received positive feedback.

Findings:

The Board of Appeals specifically finds that owing to circumstances relating to the shape and topography of such land but not affecting generally the zoning district in which it is located, a literal enforcement of the provisions of the ordinance would involve substantial hardship, financial or otherwise, to the petitioner or appellant, and that desirable relief may be granted without substantial detriment to the public good and without nullifying or substantially derogating from the intent or purpose of such ordinance.

General Conditions:

1. Modifications to Approved Plans: The applicant, property owner and their successors or assigns (collectively "Applicant"), shall adhere to the above referenced and approved plans which are incorporated herein by reference. Should the Applicant determine that a plan(s) needs to be modified they shall notify the Building Commissioner of the proposed modifications in writing and obtain approval for said modifications from the Zoning Board of Appeals or Building Commissioner as set forth herein prior to making such modifications in the field. The Building Commissioner shall determine whether such modifications are minor or major (material) in nature. The Zoning Board of Appeals shall schedule a public hearing or review and approval of any change deemed major or material in nature to the permit originally issued. Any major or material alteration or changes to the plans shall require prior approval by the Zoning Board of Appeals. Minor changes may be approved in writing by the Building Commissioner without further review by the Zoning Board of Appeals. The determination as to whether an alteration of

change to plans is material or major and therefore subject to the Zoning Board of Appeals review shall be made at the discretion of the Building Commissioner.

2. Curb Cuts: Any new driveway opening or curb cuts that have egress to the public right of way must be approved by the City Engineer or Designee in advance of construction.
3. Fire Department and Utility Compliance: The Applicant shall be responsible for designing the utility's to meet City standards and ensuring compliance with the fire codes prior to commencing work under this permit.
4. Submission of As Built Foundation Plan: A copy of the as-built foundation plan shall be provided to the Building Department upon foundation completion.
5. Site Lighting: All lighting fixtures, including but not limited to, signage, building, parking lot, site decorative, and security shall feature cut off fixtures so that the lights are pointed downward reducing light pollution and glare onto abutting properties.
6. Hours of Construction: The Applicant shall take reasonable care not to disturb surrounding properties and property owners during construction. Construction work shall be limited to the hours of 7:00 am to 7:00 pm Monday – Saturday.
7. Submission of As-Built Site Plans: A copy of the as built site plans stamped by a professional engineer shall be submitted to the Office of Planning and Development at the completion of construction.
8. The Applicant shall record a copy of this decision at the Registry of Deeds and shall provide it to the Building Department prior to the issuance of a building permit.

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An Appeal of this Decision shall be made pursuant to §17 of Chapter 40A and shall be filed with Superior or District Court within twenty (20) days after the date of filing of the above cited decision with the Office of the City Clerk. Procedural appeals shall be taken in accordance with §17 of Chapter 40A.

5-20-2026

[Signature]

DATE

CHAIRPERSON

Louise Bevilacqua

[Signature]

Ryan B

Bevilacqua

yes

Brown

yes

Vathally

yes

Soraghan

yes

Moraitz

yes

Granted

TRUE ATTEST COPY

Kaitlin M. Wright

CERTIFICATION OF DECISION

I, Kaitlin M. Wright Esposito City Clerk of the City of Haverhill, Massachusetts do hereby certify that twenty days have elapsed since the above referenced decision of the Board of Appeals, which was filed in the office of the City Clerk on June 24, 2024 and that no appeal has been filed with the City Clerk.

Kaitlin M. Wright Esposito
City Clerk
Haverhill, Massachusetts

NOTE: IF THE RIGHTS AUTHORIZED BY THIS VARIANCE AND FINDINGS OF THE BOARD OF APPEALS ARE NOT EXERCISED OR EXTENDED WITHIN ONE YEAR OF THE GRANT, SAID RIGHTS SHALL LAPSE.